

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-05

RAHAL INTERNATIONAL, INC.,
Complainant,

v.

HAPAG-LLOYD AG and
HAPAG-LLOYD (AMERICA) LLC,
Respondents—Third-Party Complainants,

v.

MAHER TERMINALS LLC,
GCT NEW YORK LP, and
GCT BAYONNE LP,
Third-Party Respondents.

REVISED JOINT MOTION TO AMEND SCHEDULE

Complainant Rahal International, Inc. (“Rahal”), Respondents—Third-Party Complainants Hapag-Lloyd AG and Hapag-Lloyd (America), LLC (collectively, “Hapag”), and Third-Party Respondents Maher Terminals LLC (“Maher”), GCT New York LP and GCT Bayonne LP (collectively, the “GCT Respondents”) hereby submit this Revised Joint Motion to Amend the Schedule in accordance with and in response to the Order On Joint Motion to Revise the Scheduling Order of December 15, 2023 (the “12/15/23 Order”).

For the reasons set forth below, the parties submit that good cause exists to revise the August 21, 2023 scheduling order (the “Initial Scheduling Order”) and enter a new schedule addressing the global completion of discovery and briefing that would allow for

the development of a full record.

In that regard, the parties generally submit that good cause is shown to adjust the Initial Scheduling Order because of the additional time and discovery that is necessary due to the introduction of the three Third-Party Respondents in the case (*i.e.*, Maher and the GCT Respondents) that could not, and has not, been completed within the timeframe of the Initial Scheduling Order. Specifically, the Initial Scheduling Order required initial discovery requests to be served by September 5, with objections to same to be served by September 29. On September 6, Third-Party Complainant's Motion for Leave to File a Third-Party Complaint was granted, which called for responsive pleadings to be submitted by Maher and the GCT Respondents by October 3, 2023. With Maher and the GCT Respondents not appearing in the matter until October 3, 2023, and with the GCT Respondents appearing by way of the filing of a Motion to Dismiss, Maher and the GCT Respondents were not in a position to serve initial discovery requests in accordance with the time periods set forth in the Initial Scheduling Order as to the then party discovery schedule. In view of the foregoing, the parties reasonably believed and agreed that adhering to the dates set forth in the Initial Scheduling Order would have more than likely led to several discovery inefficiencies including, but not limited to, an unsystematic procedure for the service of written discovery requests and responses vis-à-vis Third-Party Respondents, as well as the potential for multiple and duplicative depositions of witnesses, which, at this time, will likely include *at least* one witness from each party group (for a minimum of at least four witnesses). The parties conducted multiple conferences to address the timing and coordination of discovery in keeping with the Initial Scheduling Order, or as close thereto as practical, as reported in their prior status reports.

In reliance on the parties' foregoing belief and agreement, the original parties focused diligently on (1) addressing the exchange of Rahal and Respondents Hapag written discovery responses and document productions, which included nearly 300 files being produced by Rahal and over 7,000 pages of documents being produced by Hapag,¹ and (2) reaching an agreement on a proposed confidentiality order, which is now under consideration by the GCT Respondents with Maher having previously circulated its comments to the proposed agreement on November 3, 2023,² but were not in a position to conduct depositions, nor exchange expert witness affirmative and rebuttal reports (which were to have concluded on November 27, December 4, and December 18, respectively). With respect to Maher, Maher served initial disclosures on October 10, 2023, but neither served, nor had been served with, any additional discovery requests in light of the parties' belief that conducting discovery before the disposition of the GCT Respondent's Motion to Dismiss was appropriate given the aforementioned circumstances and Maher being a similarly situated marine terminal operator like the GCT Respondents.

As the Initial Scheduling Order currently stands, discovery is required to be completed on December 29, but none of the parties are prepared or could have been prepared to meet that deadline, particularly with the GCT Respondents' responsive pleading due just earlier this week and initial disclosures not due until later this month.

¹ In addition to making their respective document productions available to one another, Rahal and Respondent Hapag previously made their productions available to Maher. Rahal also made its production available to the GCT Respondents, and Hapag will be making its production available to the GCT Respondents in the near future.

² The parties acknowledge Administrative Law Judge Crovella's reminder set forth on page two of the 12/15/23 Order concerning the Commission's process for handling and treating confidential information.

Should the Initial Scheduling Order go unrevised, the parties will be unable to adequately brief the issues pleaded and the Commission's ability to issue a complete adjudication on the proceedings will be adversely affected. For these reasons, the parties respectfully submit that an extension to the Initial Scheduling Order is now ripe for consideration and that good cause exists for a revision of the Initial Scheduling Order.

In view of all the above, as well as Administrative Law Judge Crovella's directive set forth on page three of the 12/15/23 Order, the parties respectfully move for an order establishing the following schedule based on a showing of good cause:

1. PROPOSED PROCEDURAL SCHEDULE

(a) Third-Party Complainants and Third-Party Respondents' initial discovery requests, including requests for production of documents, requests for admissions, and interrogatories, shall be served by **January 10, 2024**. The service of initial discovery requests does not foreclose a party from timely serving additional or supplemental discovery requests irrespective of whether the party filed an initial request of the same nature.

(b) Third-Party Complainants and Third-Party Respondents' responses to initial discovery requests shall be served by **February 9, 2024**.

(c) Depositions of factual witnesses and experts for whom a written report is not required shall be completed by **March 22, 2024**.

(d) Each party's expert report(s) addressing any issue(s) upon which the party bears the burden of proof shall be served by **March 29, 2024**.

(e) Expert rebuttal reports shall be served by **April 12, 2024**.

(f) All factual and expert discovery shall be completed by **April 26, 2024**.

2. **BRIEFING SCHEDULE**

(a) On **May 20, 2024**, Complainant and Third-Party Complainant (as to its affirmative claims) shall file their respective Brief, Proposed Findings of Fact, and Appendix.

(b) On **June 17, 2024**, Respondent and Third-Party Respondents shall file their respective Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact and Appendix.

(c) On **July 1, 2024**, Complainant and Third-Party Complainant (as to its affirmative claims) shall file their respective Reply Brief and Responses to Proposed Findings of Fact.

Dated: December 20, 2023

Respectfully submitted,

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